

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Arthur	Team: Team # 5	CCRB Case #: 201213892	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 10/22/2012 9:05 AM	Location of Incident: 122nd Precinct	18 Mo. SOL 4/22/2014	Precinct: 122
Date/Time CV Reported Thu, 10/25/2012 5:09 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 10/25/2012 5:09 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Joseph Metsopulos	06719	937101	122 DET
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Joseph Metsopulos	Discourtesy: PO Joseph Metsopulos spoke rudely to § 87(2)(b)	A . Complainant Uncooperative
B . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On October 25, 2012, § 87(2)(b) filed the following complaint with the CCRB online.

On October 22, 2012, § 87(2)(b) was arrested and taken to the 122nd Precinct where she was questioned by PO Joseph Metsopulos § 87(2)(b). § 87(2)(b) asked PO Metsopulos to call her place of employment to let her managers know that she would not be able to work her scheduled shift. When § 87(2)(b) told PO Metsopulos that she worked at § 87(2)(b) he replied, “Ew, I’m not calling him. I don’t want to talk to him; he’s a skater.” He called the assistant manager, § 87(2)(b) on his cell phone and the call was not answered. § 87(2)(b) requested that PO Metsopulos call back and leave a message. When the time came to leave the voice message, PO Metsopulos and another unidentified detective were making jokes and laughing on the voicemail. When § 87(2)(b) was being questioned, she asked the officers why they were taking the voicemail so seriously § 87(2)(b).

(Allegation A)

On October 24, 2012, when § 87(2)(b) returned to work, § 87(2)(b) stated that he thought the call he received was a prank call as the detective in the background could be heard saying “fuck it, fuck it.” **(Allegation B)**

The undersigned investigator attempted to schedule § 87(2)(b) for an in-person statement on several occasions. Seven phone calls were placed to § 87(2)(b) between November 20, 2012, and January 14, 2013. Five emails were sent to § 87(2)(b) between November 23, 2012, and January 16, 2013; none of these emails were returned as non-deliverable. A final please call letter was sent to § 87(2)(b) on January 10, 2013; the United States Postal Service did not return this letter. While § 87(2)(b) did respond to several emails and/or voicemail messages, her responses did not lead to an in-person statement. On January 25, 2013, a query of the NYC Department of Corrections website did not indicate that § 87(2)(b) was incarcerated. Therefore, it is recommended that this case be closed as *complainant uncooperative*.

Team: 5

Investigator:	_____	Matthew R. Arthur	9/29/2023
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date